

Reimagining Human Rights in the Digital Age: Freedom, Privacy, and Public Security in Sri Lanka

Introduction

The rapid evolution of digital technologies has redefined how civil, political, economic, cultural and social rights are exercised, challenged, and protected in modern societies. As individuals increasingly shift their personal, professional, and civic lives into digital spaces, it has become imperative to recognize that the rights enjoyed offline must also be safeguarded online. This includes not only the well-known right to freedom of expression but a broader spectrum of fundamental rights such as freedom of association, access to information, equality and non-discrimination, the right to a fair trial, privacy, employment rights, cultural and social rights. These rights, while rooted in international instruments like the Universal Declaration of Human Rights (UDHR) and the International Covenant on Civil and Political Rights (ICCPR), must now be interpreted and applied in the context of algorithmic governance, online surveillance, mass data collection, and platform-based communication.¹

In Sri Lanka, the expansion of digital technologies over the past decade has transformed the social, political, and cultural landscape, giving rise to new forms of expression and civic engagement. According to Digital 2025 statistics², Sri Lanka had approximately 12.4 million internet users at the beginning of 2025, representing an internet penetration rate of 53.6 percent. The country also had around 8.2 million active social media users, equivalent to 35.4 percent of the total population. The younger generation, particularly those between the ages of 15 and 29, accounts for a significant portion of this digital community, with nearly 78.7 percent of youth using the internet daily.

The increasing accessibility of mobile devices and affordable data services has further accelerated this digital shift, with 32.49 million cellular mobile connections active in early 2024- equivalent to 148.2 percent of Sri Lanka's population.³ This trend underscores how digital spaces have become central to daily life, enabling individuals to construct online identities and connect with others across geographical and social boundaries. Platforms such as Facebook, WhatsApp, and YouTube dominate the social media landscape in Sri Lanka, while Instagram, TikTok, Snapchat, and LinkedIn have also gained popularity among the youth. These platforms are not merely spaces

¹ Universal Declaration of Human Rights, 1948; International Covenant on Civil and Political Rights, 1966.

² Datareportal, Digital 2025: Sri Lanka, https://datareportal.com/reports/digital-2025-sri-lanka?utm_source=chatgpt.com

³ Ibid (2)

for entertainment; they have evolved into powerful tools for information dissemination, activism, and advocacy.⁴

The years 2019 to 2025 have been particularly significant in demonstrating the role of social media in shaping public discourse and driving social movements in Sri Lanka. For instance, in the aftermath of the 2019 Easter Sunday attacks, social media became a primary medium for sharing information, seeking accountability, and mobilizing communities, although it also raised concerns about the rapid spread of misinformation. During the COVID-19 pandemic (2020–2021), digital platforms played an essential role in disseminating public health information and facilitating remote work, education, and even small-scale entrepreneurship. At the same time, social media emerged as a tool for expressing frustration with the government's handling of the crisis.⁵

The most striking example of digital activism was seen during the 2022 people's uprising (commonly referred to as the *Aragalaya*). Social media was at the heart of the movement that led to the resignation of the country's president and government officials. Platforms like Facebook, Twitter (now X), and TikTok became spaces where young people organized protests, coordinated humanitarian efforts, and amplified their demands for political reform.⁶ These events demonstrated the power of digital platforms to mobilize mass action and challenge traditional structures of authority.

Sri Lanka's 1978 constitutional framework guarantees many of these civil and political rights, including freedom of expression (Article 14(1)(a)), freedom of association (Article 14(1)(c)), equality (Article 12), and due process (Article 13). However, these legal provisions were developed in a pre-digital context and are not always equipped to address the opportunities and challenges presented by the digital age. While digital technologies have created new avenues for the exercise and enjoyment of human rights, existing frameworks often fail to adequately respond to emerging threats, including online surveillance, algorithmic discrimination, and opaque content moderation practices carried out by privately owned digital platforms.⁷ As a result, there is a growing need to reinterpret and extend these rights to encompass the unique challenges and realities of the digital sphere.

This analysis recognizes that digital rights are not separate or novel rights but rather extensions of existing human rights frameworks adapted to the realities of the digital age. As with many human rights, digital rights are not absolute and may be subject to certain limitations. In the digital environment, however, these limitations often take different forms from those found in the physical

⁴ United Nations Human Rights Council. (2016). Resolution A/HRC/32/13.

⁵ Freedom House. (2020). *Freedom on the Net: Sri Lanka* and Amnesty International. (2021). *Sri Lanka: Digital repression during COVID*. <<https://www.amnesty.org/en/documents/asa37/4262/2021/en/>>

⁶ Human Rights Watch. (2022). *Sri Lanka: Crackdown on Aragalaya Protests*. <<https://www.hrw.org/news/2022/08/05/sri-lanka-end-government-crackdown-peaceful-protesters>>

⁷ Centre for Policy Alternatives. (2022). *Sri Lanka's Digital Regulation Landscape: Challenges and Gaps*.

sphere, manifesting through laws and policies relating to online safety, data protection, cybersecurity, cybercrime, and emergency regulations.

At the heart of this discussion lies a complex tension, the need to ensure robust protection of individual rights, group rights or people's rights in digital spaces while recognizing the state's responsibility to safeguard public order, national security, and the rights and freedoms of others, including privacy. When limitations on digital rights are left undefined, overly broad, or inadequately regulated, they can easily lead to censorship, excessive surveillance, restrictions on access to information, and the suppression of dissenting voices. Therefore, this report explores not only how human rights operate in the digital age but also how restrictions on those rights must be carefully designed, transparently implemented, and proportionately applied in accordance with international human rights standards.

1) **Reconceptualizing Human Rights in the Digital Age**

The transition from analogue to digital life has redefined how fundamental human rights are exercised, protected, and challenged. The United Nations Human Rights Council (UNHRC) **has** consistently emphasized, through resolutions in 2012, 2014, and 2016 (A/HRC/RES/32/13), that “*the same rights that people have offline must also be protected online.*”⁸ These rights are not “new” in a philosophical sense but are extensions of classical rights to ensure their relevance in the age of algorithmic governance, pervasive data collection, and online platforms.⁹

A significant distinction between the physical and digital environments is that the protection and regulation of rights in digital spaces are no longer the exclusive responsibility of the State. Private actors, particularly technology companies and digital platform providers, play an increasingly influential role in shaping access to information, online participation, privacy, employment opportunities, and other aspects of human rights enjoyment.

Before identifying the rights applicable in the digital age, it is important to recognize that the right to internet access and digital connectivity serves as the foundational right that enables the exercise and enjoyment of many other human rights.

⁸ UN Human Rights Council Resolutions A/HRC/20/8 (2012), A/HRC/26/13 (2014), and A/HRC/32/13 (2016)

⁹ United Nations General Assembly. (2013). *The Right to Privacy in the Digital Age*, A/RES/68/167.

1.1) Right to Internet Access and Digital Connectivity

Although access to the internet is not explicitly stated in the core international human rights treaties and in Sri Lanka Domestic laws, it has increasingly been recognized as an enabling condition for the effective enjoyment of a wide range of fundamental rights. These include freedom of expression, freedom of association, access to education, access to information, the right to work, and the right to health. In contemporary societies, many of these rights cannot be meaningfully exercised without digital connectivity, making internet access a foundational precondition for participation in social, political, and economic life.

The traditional interpretation of freedom of expression under Article 19 of the Universal Declaration of Human Rights (UDHR)¹⁰ and Article 19 of the International Covenant on Civil and Political Rights (ICCPR)¹¹ has evolved significantly in this context. These provisions guarantee not only the right to express and disseminate information but also the right to seek and receive information. This interpretation necessarily implies access to communication infrastructure, including digital networks. The UN Human Rights Committee, in General Comment No. 34, further clarifies that the “means of communication” are integral to the protection of expression rights, thereby implicitly encompassing the internet as a contemporary medium for exercising these freedoms.¹² In this sense, digital connectivity is no longer merely a facilitative tool but has become central to the exercise of fundamental rights in the digital age.

This evolving understanding has been reinforced at the international level. The UN Human Rights Council Resolution 20/8 (2012)¹³ affirmed that access to the internet is essential for the enjoyment of human rights and should remain open, accessible, and free from undue restriction. More recently, constitutional jurisprudence has further strengthened this trajectory. In *Amar Jain v. Union of India (2025)*¹⁴, the Supreme Court of India recognized “digital access” as an integral component of fundamental rights under Article 21 of the Indian Constitution. The Court held that the right to life and personal liberty must be interpreted in light of technological realities, where access to essential services, governance, education, healthcare, and economic opportunities is increasingly mediated through digital platforms.

The Court emphasized that exclusion from digital access effectively undermines dignity, autonomy, and equal participation in public life. It therefore recognized that bridging the digital

¹⁰ UDHR Article 19, Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.

¹¹ ICCPR, Article 19, Everyone shall have the right to hold opinions without interference

¹² United Nation ICCPR, General Comments No.34, CCPR/C/GC/34, < <https://freedex.org/wp-content/blogs.dir/2015/files/2015/09/gc34.pdf> >

¹³ United Nation General Assembly, A/HRC/RES/20/8 < <https://documents.un.org/doc/resolution/gen/g12/153/25/pdf/g1215325.pdf>

¹⁴ *Amar Jain v. Union of India (2025)*, W.P. (c) No.49 of 2025

divide is not a matter of policy discretion alone but a constitutional necessity. By situating digital access within Article 21¹⁵, the Court affirmed that meaningful life in the twenty-first century requires affirmative state action to ensure inclusive digital infrastructure. This marks a significant shift in constitutional interpretation, where internet access is increasingly viewed as integral to the realization of human dignity and equality.

- **Access to the Internet for Political Rights**

The relationship between internet access and political rights is best understood through contemporary theoretical frameworks that extend traditional civil liberties into the digital sphere. As public discourse, civic engagement, and political participation increasingly shift online, internet connectivity has become a prerequisite for democratic inclusion rather than a mere technological convenience.

Digital Rights Theory¹⁶- expands the scope of human rights into digital environments, including artificial intelligence, big data, and cloud-based infrastructures. Within this framework, core political rights such as freedom of expression, privacy, data protection, and access to information are primarily exercised through digital platforms. Ethical approaches further reinforce this position. From a utilitarian perspective, internet access enhances collective welfare by enabling participation in civic dialogue and public decision-making. From a deontological perspective, equal participation in social and political life is a matter of inherent human dignity, which now requires digital inclusion.¹⁷ In the absence of internet access, individuals are effectively excluded from the digital public sphere and deprived of meaningful opportunities to hold governments accountable.

The concept of digital sovereignty¹⁸ also contributes to this analysis. While traditionally associated with state control over digital infrastructure, data governance, and regulatory autonomy, it also implies corresponding state responsibilities. If a state asserts sovereignty over its digital ecosystem, it must also ensure equitable access, prevent arbitrary restrictions, and promote inclusive digital policies. In this way, digital sovereignty is not only about control but also about safeguarding citizens' political rights within the digital environment.

¹⁵ India Constitution 1949, Article 21

¹⁶ Media Law Forum, Understanding Digital Rights Theory, < <https://www.medialawforum.org/understanding-digital-rights/>> and Strathmore University , 'Recognizing access to the Internet as a fundamental right: Political, social economic and legal Perspective.

¹⁷ Ibid (19)

¹⁸ The World Economic Forum, ' What is Digital Sovereignty and how are countries approaching it?'< <https://www.weforum.org/stories/2025/01/europe-digital-sovereignty/> and ibid (19)

Closely related is the notion of cyber citizenship¹⁹, which extends the idea of citizenship into online spaces. It emphasizes participation in digital communities, civic engagement, accountability mechanisms, and digital literacy. Under this framework, internet access becomes the foundational condition for exercising citizenship in contemporary society. Without connectivity, individuals are structurally excluded from participation in democratic processes that increasingly operate through digital systems.

- **Access to the Internet for Social and Economic Rights**

In many developing contexts, the digital divide operates as a structural barrier that reinforces existing inequalities based on geography, gender, and income. Conversely, universal internet access functions as an equalizing force that significantly expands the realization of social and economic rights.²⁰

From an economic perspective, connectivity contributes to poverty reduction, employment generation, and access to global markets. Digital infrastructure enables individuals to access information about prices, markets, and employment opportunities, thereby increasing productivity and income security.²¹ Empirical evidence has shown that mobile broadband access in countries such as Tanzania has facilitated shifts from low-income agricultural labor into more stable forms of employment in retail and service sectors, particularly benefiting women and skilled workers. In rural economies, internet access also enhances agricultural productivity by providing real-time weather forecasts, market pricing data, and access to digital training resources²².

In relation to education, the internet has become an essential tool for learning and skills development. It enables remote education and helps reduce disparities between urban and rural schooling systems. The COVID-19 pandemic starkly demonstrated this dependency.

The internet also plays a critical role in advancing health outcomes and gender equality. Digital connectivity allows individuals to access timely health information, public health guidance, and telemedicine services, particularly during emergencies. For women, especially those in marginalized or rural communities, internet access creates opportunities for education, entrepreneurship, and participation in public discourse, thereby enhancing economic independence

¹⁹ The Council of Europe, 'Digital Citizenship Education' < <https://www.coe.int/en/web/education/digital-citizenship-education>> and Ibid (19)

²⁰ ISPI, The Digital Divide, A barrier to Social, Economic and Political Equity' < <https://www.ispionline.it/en/publication/the-digital-divide-a-barrier-to-social-economic-and-political-equity-204564>>

²¹ Strathmore University, 'Recognizing access to the Internet as a fundamental right: Political, social economic and legal Perspective.< <https://cipit.strathmore.edu/recognising-access-to-the-internet-as-a-fundamental-right-political-socio-economic-and-legal-perspectives/>>

²² Joint SDG Fund, 'How Digital Transformation is Revitalizing Social Communities' < <https://www.jointsdgfund.org/article/cultivating-future-how-digital-transformation-revitalizing-soils-and-communities>>

and social empowerment. In this sense, digital connectivity increasingly functions as essential infrastructure, comparable to water or electricity, without which vulnerable populations remain trapped in cycles of poverty and exclusion²³.

- **Access to the Internet as a Legal Instrument for Human Rights**

Although early international human rights instruments did not explicitly anticipate digital technologies, contemporary legal developments have increasingly recognized internet access as an essential instrument for the realization of fundamental rights. International and regional bodies now interpret existing human rights frameworks as applying fully to online spaces.

The UN Human Rights Committee, through General Comment No. 34, has affirmed that rights protected offline must also be protected online, particularly in relation to freedom of expression under Article 19 of the ICCPR²⁴. This interpretation places a positive obligation on states to protect digital communication environments as part of their broader human rights commitments. Similarly, regional bodies such as the African Commission on Human and Peoples' Rights have issued resolutions condemning internet shutdowns, particularly during elections, and have emphasized that affordable and equitable access to the internet is essential for the realization of rights under the African Charter, including freedom of expression, political participation, and the right to development.²⁵

A continuing debate exists in international law regarding whether internet access should be considered a standalone human right or merely an enabler of other rights²⁶. Vinton Cerf and some other scholars²⁷ argue that the internet, while important, remains a tool rather than a fundamental right in itself. Concerns are also raised regarding the financial and regulatory burden that recognition of such a right may place on states, particularly in resource-constrained contexts. Certain domestic courts have adopted a cautious approach, acknowledging the importance of internet access but refraining from recognizing it as an independent constitutional right, instead treating it as a facilitator of expression and participation.²⁸

²³ Digital Transformation in Healthcare< <https://pmc.ncbi.nlm.nih.gov/articles/PMC9963556/>>

²⁴ Ibid (12)

²⁵ African commission on Human Rights, 'Resolution on Internet Shutdowns and Elections in Africa – ACHPR. Res.580 (LXXVIII) 2024

²⁶ Ibid (25)

²⁷ Media laws, 'A human right to Internet access: a Fair assessment' <https://www.medialaws.eu/a-human-right-to-internet-access-a-fair-assessment/>

²⁸ Ibid(25) and European Parliament, 'Internet access as a Fundamental Right'< [https://www.europarl.europa.eu/RegData/etudes/STUD/2021/696170/EPRS_STU\(2021\)696170_EN.pdf](https://www.europarl.europa.eu/RegData/etudes/STUD/2021/696170/EPRS_STU(2021)696170_EN.pdf)>

However, human rights law is inherently dynamic and evolves in response to social and technological change.²⁹ Many established rights are themselves dependent on enabling conditions. For example, the right to education supports the realization of the right to work, and the right to information underpins democratic participation. When the absence of an enabling condition effectively prevents the exercise of core freedoms, that condition increasingly acquires the character of a right in itself. On this basis, there is a growing argument that internet access has moved beyond the status of a mere facilitator and now constitutes an essential right, the realization of which is necessary for the enjoyment of a wide range of fundamental human rights. This shift also implies a transformation in legal responsibility, moving from market-based provision toward a framework of positive state obligations to ensure universal, equitable, and non-discriminatory access to digital connectivity.

In the author's view, the compatibility of blanket internet shutdowns with international human rights law remains highly questionable. As access to the internet is increasingly recognized as a fundamental right and an essential prerequisite for the exercise of numerous civil, political, economic, social, and cultural rights, the complete suspension of internet services may amount to a serious violation of human rights. Internet shutdowns not only restrict access to information and freedom of expression but also interfere with access to all rights.

From the perspective of the International Covenant on Civil and Political Rights (ICCPR), any restriction on human rights must satisfy the principles of legality, necessity, and proportionality. Even during a state of emergency, Article 4 of the ICCPR permits derogations from certain obligations only when there is a public emergency threatening the life of the nation. Such measures must be strictly required by the exigencies of the situation, applied for a limited duration, and implemented without discrimination.

Therefore, if a state imposes an internet shutdown, it should be required to meet the same stringent conditions established under Article 4 of the ICCPR³⁰. Blanket or indiscriminate shutdowns that affect entire populations are unlikely to satisfy the requirements of necessity and proportionality, particularly where less restrictive measures are available. Consequently, states bear a heavy burden to justify any interruption of internet access and must demonstrate that such measures are lawful, strictly necessary, proportionate, and consistent with their international human rights obligations.

²⁹ Digital Law Journal, 'Protecting Human rights in the digital age: legal Framework and media literacy' < <https://www.digitallawjournal.org/jour/article/view/301> >

³⁰ Article 4 of International Civil and Political Rights Convention < <https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights> >

1.2) Reinterpreting Sri Lanka's Fundamental Rights in the Digital Age

As the right to internet access gains recognition, it increasingly serves as a foundation for the enjoyment and exercise of many other human rights. The following discussion examines how rights already recognized under the Sri Lankan legal framework are being exercised, interpreted, and transformed within the digital age

A. Freedom of Expression and Speech

The right to freedom of expression and opinion is a foundational civil and political right, enshrined in Article 19 of both the Universal Declaration of Human Rights (UDHR) and the International Covenant on Civil and Political Rights (ICCPR).³¹ These instruments guarantee not only the freedom to hold opinions without interference, but also the freedom to seek, receive, and impart information and ideas through any media, regardless of frontiers. While these provisions were originally crafted in the context of traditional media, the advent of digital technologies has dramatically transformed the landscape of communication, raising urgent questions about how these rights are interpreted and applied in today's networked society.³²

In Sri Lanka, Article 14(1)(a) of the 1978 Constitution mirrors this commitment, affirming that “every citizen is entitled to the freedom of speech and expression including publication.”³³ However, the constitutional text does not explicitly address the online dimensions of this right, nor does it provide a framework for balancing digital expression with other fundamental interests in the digital sphere.

In the digital environment, freedom of expression is increasingly mediated not by states alone, but by powerful private actors operating algorithmic content moderation systems and data-driven governance structures. Modern restrictions on speech may occur through indirect but no less impactful mechanisms, such as algorithmic down-ranking, deplatforming without due process, shadow-banning, or connectivity shutdowns.³⁴ These techniques can silence individuals or communities without formal state censorship, often without transparency or avenues for redress. The UN Human Rights Committee's General Comment No. 34 (2011) and Human Rights Council Resolution A/HRC/32/13 (2016)³⁵ emphasize that restrictions on digital expression must adhere to principles of legality, necessity, and proportionality, while reinforcing that the same rights people enjoy offline must also be protected online.

The expansion of the right to expression in the digital era must also accommodate emerging user-centric controls that are themselves forms of speech and autonomy. The “right to delete,” for instance, allows individuals to remove content or data they no longer wish to share- a modern

³¹Article 19 of Universal Declaration of Human Rights, 1948; ICCPR, Article 19 of International Covenant on Civil and Political Rights, 1966.

³² La Rue, F. (2011). Report of the Special Rapporteur on the Promotion and Protection of the Right to Freedom of Opinion and Expression, A/HRC/17/27

³³ Constitution of the Democratic Socialist Republic of Sri Lanka, 1978, Article 14(1)(a)

³⁴ Kaye, D. (2019). Report of the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, A/74/486.

³⁵ UN Human Rights Committee, General Comment No. 34 (2011); UNHRC Resolution A/HRC/32/13 (2016).

application of the broader right to privacy and dignity.³⁶ Similarly, the “right to share” protects users from arbitrary or discriminatory content removals, ensuring that online platforms do not disproportionately suppress minority or dissenting voices. The “right to block”-increasingly recognized in digital practice-is essential to protect users from harmful content and abusive interactions, thereby enabling safe participation in online discourse.³⁷ These new articulations of expression reflect the deeply interactive and participatory nature of digital communication, which demands a broader and more nuanced understanding of expression than previous media formats allowed.

Closely connected to expression is the right to access information and participate in public affairs. Article 19(2) and Article 25 of the ICCPR³⁸ collectively guarantee the right to seek and receive information and to take part in the conduct of public affairs. In a digital governance context, this includes access to open data, public platforms, electoral discourse, and mechanisms for civic monitoring. In Sri Lanka, Article 14A of the Constitution, introduced by the 19th Amendment, recognizes the right of access to information held by the state. Complemented by the Right to Information Act (2016)³⁹, this legal framework provides a formal mechanism to demand public transparency. Yet, in practice, digital access to government data remains inconsistent.⁴⁰

Government control over digital platforms has also raised constitutional concerns. For instance, the temporary suspension of social media during the 2019 Easter Sunday attacks⁴¹ and 15 hours Social media ban was imposed by the TRCSL on 3rd of April 2022 Aragalaya protests⁴² criticism for being disproportionate and lacking legal basis. A notable example occurred on June 30, 2025, when a citizen, Mr. Rukshan Priyantha, filed a complaint at the Human Rights Commission of Sri Lanka after the Sri Lanka Police allegedly blocked his access to the institution's official Facebook page.⁴³ Such incidents highlight the need for legal standards that clearly govern the circumstances under which online access can be restricted.

B. Freedom of Association and Peaceful Assembly

The International Covenant on Civil and Political Rights (ICCPR) under Article 21 and Article 22 guarantees the rights to peaceful assembly and freedom of association. These rights are foundational to democratic participation, civic engagement, and collective advocacy.⁴⁴ While

³⁶ Mantelero, A. (2013). The EU Proposal for a General Data Protection Regulation and the roots of the “right to be forgotten.”

³⁷ UNESCO. (2021). "Freedom of Expression and the Digital Era: Protecting Users' Rights."

³⁸ Articles 19(2) and 25 of International Covenant on Civil and Political Rights, 1966.

³⁹ Right to Information Act, No. 12 of 2016 (Sri Lanka

⁴⁰Human Rights Watch. (2019). “Sri Lanka: End Internet Shutdowns. <
<https://www.hrw.org/news/2019/12/19/shutting-down-internet-shut-critics>>

⁴¹ Al Jazeera, ‘Sri Lanka Lifts social media ban imposed after Easter Attacks’,
<https://www.aljazeera.com/news/2019/4/30/sri-lanka-lifts-social-media-ban-imposed-after-easter-attacks>

⁴² Sri Lanka Working Journalist Association, ‘Media Safety in Sri Lanka’ https://muragala.lk/wp-content/uploads/2024/03/Media-safety-in-Sri-Lanka-Reporting-on-the-2022-Aragalaya-MEND-Report_July_25_2023.pdf, P.25

⁴³ Rukshan Priyantha Incident Update - <https://web.facebook.com/share/p/18zqguvQU7/>

⁴⁴ ICCPR, Articles 21–22, United Nations Treaty Series, vol. 999, p. 171 (entered into force 23 March 1976).

traditionally exercised in physical spaces- own halls, public squares, or streets- these rights have evolved to include digital platforms as legitimate and necessary spaces for civic mobilization and collective expression.⁴⁵

In today's digital society, online tools such as encrypted messaging apps, social media livestreams, forums, and collaborative digital workspaces have become indispensable for organizing protests, union activities, political campaigns, and human rights movements.⁴⁶ However, this evolution has also led to new threats. Platform throttling, algorithmic suppression, targeted surveillance of digital organizers, and blanket bans on social media platforms serve to undermine the exercise of these rights just as effectively as prohibiting physical gatherings.⁴⁷

Sri Lankan Constitutional Protection: In the Sri Lankan Constitution, Article 14(1)(b) protects "the freedom of peaceful assembly" and Article 14(1)(c) guarantees "the freedom of association."⁴⁸ Although these articles do not explicitly refer to digital spaces, their spirit and purpose apply equally to digital forms of engagement, as modern civic action increasingly occurs online.⁴⁹

Above mentioned The use of network shutdowns- as seen during the 2019 Easter Attacks and the 2022 protests-exacerbates the problem by disabling entire communities from associating, organizing, or even seeking accountability. These shutdowns were widely criticized by international human rights bodies and contradict UN Special Rapporteurs' guidelines, which state that such shutdowns are disrupted to the Freedom of association and rarely compatible with international human rights standards.⁵⁰

It is now widely accepted that freedom of association must include the right to form and join digital communities encrypted and secure communication platforms are essential for enabling safe collective action, and state actions that block or monitor digital platforms without transparent, lawful, and necessary justifications amount to violations of these foundational rights.⁵¹ Governments, including Sri Lanka, must recognize that digital assembly is not optional-it is intrinsic to modern democratic participation. Therefore, a rights-respecting framework should include legal recognition of digital spaces for association, strict limitations on surveillance, and prohibition of arbitrary internet shutdowns.⁵²

⁴⁵ UN Human Rights Council Resolution A/HRC/32/13 (2016).

⁴⁶ Access Now. (2020). *Digital Rights in Sri Lanka: Trends, Challenges and Recommendations*
<https://www.accessnow.org/wp-content/uploads/2025/01/Comments-on-Sri-Lanka-draft-National-Strategy-on-AI.pdf>

⁴⁷ ARTICLE 19. (2018). *Internet Shutdowns: The Use of Kill Switches to Curtail Online Expression*.

⁴⁸ Constitution of the Democratic Socialist Republic of Sri Lanka (1978), Articles 14(1)(b) and 14(1)(c).

⁴⁹ UN Human Rights Council, *The promotion, protection and enjoyment of human rights on the Internet*, A/HRC/32/L.20 (2016)

⁵⁰ UN Special Rapporteur on Freedom of Expression, Joint Declaration on Internet Shutdowns (2016).

⁵¹ UN General Assembly, *The Right to Privacy in the Digital Age*, A/RES/73/179 (2019).

⁵² <https://www.accessnow.org/internet-shutdowns-2023/>

C. Right to Equality and Non-Discrimination

Articles 2 and 26 of the International Covenant on Civil and Political Rights (ICCPR) affirm that all individuals are equal before the law and entitled to protection from discrimination. These rights require states to guarantee equality in law and in practice, across all spheres of life- including digital environments. However, algorithmic bias, discriminatory content moderation, and hate speech proliferate in online spaces, disproportionately targeting marginalized groups such as women, LGBTQIA+ individuals, and ethnic or religious minorities. These communities are frequently subject to harassment, cyberbullying, doxing, and deepfake attacks, forcing many into silence or withdrawal from online platforms -thus undermining their right to participate in the digital public sphere.

Additionally, the use of AI and automated decision-making in sectors such as policing, hiring, and welfare distribution may replicate and amplify structural inequalities when based on biased datasets.⁵³ Without intervention, digital technologies risk deepening existing social divides and reinforcing discrimination.

Sri Lankan Constitutional Protection⁵⁴:

- *Article 12(1)* of the Constitution of Sri Lanka states: “All persons are equal before the law and are entitled to the equal protection of the law.”

Article 12(2) prohibits discrimination on the grounds of race, religion, language, caste, sex, or political opinion.

Despite these constitutional guarantees, Sri Lanka currently lacks effective mechanisms to tackle digital discrimination. Online platforms have been used to spread racial and religious hate speech- particularly during periods of ethnic tension- without adequate state intervention.⁵⁵ The government’s failure to regulate online content and protect vulnerable communities from digital harassment undermines the equality guarantees enshrined in both domestic and international law. Moving forward, it is vital to develop clear policies for algorithmic transparency, introduce digital rights literacy programs, and establish accessible redress mechanisms for victims of online discrimination.⁵⁶

D. Right to a Fair Trial and Due Process in the Digital Age (ICCPR Article 14)

Article 14 of the ICCPR guarantees every individual the right to a fair and public hearing by a competent, independent, and impartial tribunal, as well as the presumption of innocence until proven guilty. However, in the digital age, this right is increasingly threatened by the rapid dissemination of unverified information, photographs, and narratives on social media.⁵⁷ Often,

⁵³ Eubanks, V. (2018). *Automating Inequality: How High-Tech Tools Profile, Police, and Punish the Poor*.

⁵⁴ Constitution of the Democratic Socialist Republic of Sri Lanka (1978), Article 12

⁵⁵ Human Rights Watch. (2020). *Sri Lanka: Online Hate Speech, Real-World Consequences*

⁵⁶ UN Special Rapporteur on the Right to Non-Discrimination. (2021). *Digital Discrimination and Algorithmic Bias*, A/HRC/47/27

⁵⁷ UN HRC, *General Comment No. 34*, para

suspects are named and shamed online before legal proceedings have even begun. This creates a digital “trial by media,” where public perception is shaped by misinformation or partial information, seriously compromising the right to a fair and impartial hearing.

The impact of digital exposure on a suspect’s right to privacy and presumption of innocence is severe. Social media virality can cause irreversible damage to reputation, influence judicial outcomes, and place pressure on judges, thereby undermining the independence of the judiciary and the fairness of proceedings.⁵⁸

Sri Lankan Constitutional Protection:

- *Article 13(3)*: “Any person charged with an offence shall be entitled to be heard, in person or by an attorney-at-law, at a fair trial by a competent court.”
- *Article 13(5)*: Recognizes the presumption of innocence until proven guilty.

In Sri Lanka, these rights are constitutionally protected, but enforcement in digital contexts is weak. For example, sensitive information from police investigations has at times been leaked to the media or shared online, endangering the fairness of judicial proceedings. Guidelines to protect the digital privacy of suspects and regulate the online reporting of legal matters are urgently needed. Without such measures, Sri Lanka’s legal system risks falling short of its own constitutional promises and international obligations.⁵⁹

1.1) Freedom from Torture and Cruel, Inhuman, or Degrading Treatment (ICCPR Article 7)

Article 7 of the ICCPR prohibits torture and cruel, inhuman, or degrading treatment or punishment under any circumstances. In the digital context, this protection must be expanded to include psychological and emotional harm inflicted through technology. Online spaces are often used to perpetrate acts of harassment, revenge porn, blackmail, cyberstalking, and digital threats—particularly against women, journalists, human rights defenders, and marginalized communities.⁶⁰

These acts, while not physically violent, can result in extreme emotional trauma, anxiety, and fear, constituting mental torture in some cases. The government’s failure to respond effectively to these harms can be considered a form of neglect that violates its obligations under Article 7.⁶¹

Sri Lankan Constitutional Protection:

⁵⁸ Privacy International. (2021). *Pre-Trial Fairness in the Digital Age*.

⁵⁹ Bar Association of Sri Lanka (BASL), *Statement on Media Trials*, June 2023 < <https://basl.lk/statement-of-the-bar-association-of-sri-lanka/> >

⁶⁰ UN General Assembly, *The Right to Privacy in the Digital Age*, A/RES/68/167 (2013)

⁶¹ UN Special Rapporteur on Torture. (2016). *Psychological Torture and Digital Threats*, A/71/298

Article 11 states: “No person shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.”

Despite this, enforcement remains limited. Many victims of online abuse have no access to legal redress, and police responses to complaints of digital violence-especially those involving women or minority groups-are often dismissive or inadequate.⁶² Sri Lanka must ensure that its protection against degrading treatment includes emotional and psychological harms inflicted through digital means and develop legal safeguards and victim support mechanisms accordingly.

1.2) Emerging Digital Rights for Recognition in Sri Lanka

A. Right to Digital Privacy⁶³

The Right to Digital Privacy is rooted in Article 17 of the ICCPR, which protects individuals from arbitrary or unlawful interference with privacy, family, home, or correspondence.⁶⁴ In today’s context, this right encompasses protections against mass surveillance, spyware intrusions (such as Pegasus), persistent tracking, and unauthorized access to private communications.⁶⁵ The UN General Assembly Resolution 68/167 (2013) explicitly affirmed that privacy rights must be upheld in the digital age.⁶⁶ However, in Sri Lanka, there is no explicit constitutional right to privacy. Although judicial interpretations have begun to acknowledge privacy as a component of human dignity, legislative protections remain weak. The ICCPR Act No. 56 of 2007 indirectly incorporates some of these safeguards, but Sri Lanka lacks a dedicated privacy statute or digital oversight authority.⁶⁷

B. The Right to Data Protection and the Prohibition of Unauthorized Data Collection

have become central to the digital rights discourse. Globally, these principles are underpinned by international instruments such as the OECD Privacy Guidelines and the EU’s General Data Protection Regulation (GDPR), which emphasize consent, data minimization, and purpose limitation.⁶⁸ The UN Special Rapporteur on the Right to Privacy has affirmed that indiscriminate

⁶² Women and Media Collective. (2023). *Digital Harassment and Gendered Violence in Sri Lanka*<<https://womenandmedia.org/statement-against-online-offline-harassment-of-women-politics/>>

⁶³ Nehme and EL Khoury, ‘Right to Digital Privacy :An International Perspective’<https://www.researchgate.net/publication/372073542_Right_to_Digital_Privacy_An_International_Perspective>

⁶⁴ International Covenant on Civil and Political Rights (ICCPR), Article 17.

⁶⁵ UN Human Rights Council, *The Right to Privacy in the Digital Age*, A/HRC/39/29 (2018)

⁶⁶ UN General Assembly Resolution 68/167, *The Right to Privacy in the Digital Age*, A/RES/68/167 (2013).

⁶⁷ ICCPR Act No. 56 of 2007 (Sri Lanka).

⁶⁸ OECD, *Guidelines on the Protection of Privacy and Transborder Flows of Personal Data* (2013); GDPR (EU Regulation 2016/679).

data collection by states or corporations can violate ICCPR Article 17.⁶⁹ In Sri Lanka, a Data Protection Bill was introduced in 2022, aiming to establish a Data Protection Authority.⁷⁰ However, until enacted and enforced, large-scale data collection by telecommunications firms and online platforms continues unchecked, often in contravention of emerging international norms.

C. The Right to Informational Autonomy and the Right to Be Forgotten⁷¹

Reflect growing demands for user control over personal data. This concept, first recognized in German constitutional law and later in the EU through the *Google Spain v. AEPD* (2014)⁷² ruling, affirms that individuals should have the ability to delink or erase personal data that is outdated or harmful. In Sri Lanka, there is no legislative or judicial recognition of this right.⁷³ Consequently, individuals remain vulnerable to reputational harm and digital permanence, particularly in cases where outdated or defamatory content remains accessible. Though Article 14(1)(a) provides for freedom of expression, it does not yet extend to the expressive autonomy of managing one's digital identity.

Apart from the rights discussed above, Sri Lanka should also recognize and develop rights relating to the digital economy. As an increasing number of individuals engage in online entrepreneurship, platform-based work, freelancing, and other forms of digital employment, existing labor laws may not adequately address the realities of the digital workplace. Consequently, labor rights must be redefined and adapted to ensure fair working conditions, social protection, job security, and effective remedies for workers operating within digital environments.

Furthermore, economic, social, and cultural rights require renewed attention in the digital age. Rights relating to education, healthcare, and cultural participation are increasingly exercised through digital platforms and online services. Therefore, legal and policy frameworks must ensure equal access to these opportunities while addressing digital inequalities that may exclude vulnerable groups.

The digital environment also presents significant challenges to cultural rights and social cohesion. Online platforms enable the rapid dissemination of information across borders, creating opportunities for cultural exchange. However, they also facilitate the spread of misinformation, hate speech, and discriminatory content targeting particular cultural, ethnic, or religious communities. As a result, Sri Lanka should consider developing legal and policy measures that protect cultural diversity, promote respectful digital engagement, and safeguard individuals and communities from online discrimination and cultural hostility.

⁶⁹ UN Special Rapporteur on the Right to Privacy, *Report on Surveillance and Privacy*, A/HRC/34/60 (2017).

⁷⁰ Ministry of Technology, Government of Sri Lanka, *Personal Data Protection Bill*, 2022.

⁷¹ JRC Publication, Terwangne ' The Right to be Forgotten and Informational Autonomy in Digital Environment '

⁷² *Google Spain SL, Google Inc. v Agencia Española de Protección de Datos (AEPD)*, C-131/12, Court of Justice of the European Union (2014).

⁷³ <https://www.cpalanka.org/wp-content/uploads/2020/09/Discussion-Paper-Right-to-Privacy-updated-draft-4-1.pdf>

2) Reimagining the Balance Between Rights and Privacy: Public Security in Sri Lanka

Some rights are exercised individually, while others are collective or group rights. Therefore, as in the offline sphere, rights in the digital environment cannot be regarded as absolute. The exercise of digital rights must be balanced against the rights and interests of others, as well as the broader public interest. Consequently, limitations on digital rights come at that point where they are necessary to protect the rights of individuals, the interests of particular communities, or the common good, provided that such restrictions are lawful, necessary, and proportionate.

Both international and domestic legal frameworks recognize that fundamental freedoms must sometimes be limited to protect the rights of others, maintain public order, or preserve national security.⁷⁴ In Sri Lanka, although freedom from cruel, inhuman, and degrading treatment, as well as the fundamental principle of equality, are absolute rights, Article 14, which guarantees key freedoms such as expression, association, and assembly, is subject to limitations under Article 15. Article 15 provides that these rights may be restricted on certain grounds, including public security, racial or religious harmony, and public health. Article 17 further states that fundamental rights may be subject to such restrictions as provided for by law.

One of the most pressing grounds for limiting digital rights is the protection of public security. In Sri Lanka, this is operationalized through both general laws and emergency powers. The Public Security Ordinance No. 25 of 1947 (PSO) provides the President with sweeping authority to declare a state of emergency and to make regulations deemed necessary for preserving public order and national stability.⁷⁵ Under Section 5(1) of the PSO, these regulations can include restrictions on expression, assembly, and dissemination of information - powers that effectively override ordinary legislation. While such regulations are meant to respond to existential threats, their use in recent history has extended to digital spaces in this era.

The 2019 Easter Sunday attacks and the 2022 Aragalaya protests prompted the government to temporarily block access to major social media platforms. Though these actions were justified on the grounds of preventing disinformation and maintaining communal harmony by the imposers, but there were serious concerns about proportionality, necessity, and judicial oversight of those decisions.⁷⁶ The ease with which internet shutdowns and social media bans can be implemented illustrates the vulnerability of digital rights when public security is invoked without clear, narrowly defined limits.⁷⁷

Other laws also facilitate restrictions on digital freedoms in the name of public security. The Prevention of Terrorism (Temporary Provisions) Act No. 48 of 1979 (PTA) grants extensive powers to law enforcement, including the authority to arrest and detain individuals who are

⁷⁴ International Covenant on Civil and Political Rights (ICCPR), Articles 19(3), 21, and 22

⁷⁵ Public Security Ordinance No. 25 of 1947 (Sri Lanka), Section 5

⁷⁶ BBC News, <https://www.bbc.com/news/technology-48022530>

⁷⁷ UN Special Rapporteur on the Rights to Freedom of Peaceful Assembly and of Association. (2016). *Report on Internet Shutdowns*

suspected of causing violence or spreading hate through speech, signs, or representations that may incite religious or communal discord.⁷⁸

Section 14(2) of the PTA prohibits the publication of materials related to the commission or investigation of offences without official approval, thereby limiting media coverage and digital activism around such issues. Section 120 of the Penal Code similarly criminalizes speech that incites dissatisfaction or hatred toward the government, which can be interpreted broadly in the online context. These legal provisions, though aimed at ensuring peace and order, often lack clear thresholds or definitions, enabling their use as tools for suppressing dissent, stifling protest movements, and intimidating journalists and activists who operate through digital platforms.⁷⁹

Equally important is the tension between common or groups rights and the right to privacy (Personal Rights). In the digital era, individual privacy is increasingly under threat due to the widespread use of social media, data-sharing platforms, and surveillance technologies. While Sri Lanka's Constitution does not explicitly guarantee the right to privacy, courts have recognized it as a derivative right under Roman Dutch law and common law principles.⁸⁰

The absence of a dedicated privacy framework leaves individuals vulnerable to digital exploitation, including doxing, unauthorized data collection, and online defamation. Although criminal defamation was repealed in 2002, civil remedies still apply, and certain statutes attempt to offer partial protection.⁸¹ For example, the Computer Crimes Act No. 27 of 2007 penalizes unauthorized access to computer networks, unlawful disclosure of data, and offences that compromise national security. The Electronic Transactions Act No. 19 of 2006 and the Information and Communication Technology Act No. 27 of 2003 include limited consumer protections but do not offer comprehensive data privacy safeguards.⁸²

Furthermore, laws such as the Sri Lanka Press Council Law No. 5 of 1973, the Official Secrets Act No. 32 of 1995, and the Profane Publications Act No. 41 of 1958 impose restrictions on content that may offend public morals, insult religious figures, or reveal state secrets. These laws can be used to restrict not only traditional print media but also digital publications, online journalism, and citizen commentary.⁸³ For instance, Section 15(1)(a) and (d) of the Press Council Law prohibits publications deemed obscene or injurious to public security, while the Official Secrets Act broadly defines protected information, including data relating to the military and police. The vagueness of these provisions and the absence of judicial review mechanisms raise concerns about arbitrary enforcement, especially when applied to digital content.⁸⁴

The risks posed to privacy in cyberspace also derive from technological and social dynamics. With the advent of digital platforms, information can be easily recorded, copied, and disseminated without the consent of the individual concerned. As identified in academic commentary, the

⁷⁸ Prevention of Terrorism (Temporary Provisions) Act No. 48 of 1979 (Sri Lanka), Sections 2 and 14

⁷⁹ https://www.hrw.org/sites/default/files/report_pdf/india0516.pdf

⁸⁰ *Fernando v. Sri Lanka Broadcasting Corporation* [1996] 1 Sri LR 157.

⁸¹ <https://lankalaw.net/2025/01/19/cases-filed-under-online-safety-act/>

⁸² Electronic Transactions Act No. 19 of 2006; Information and Communication Technology Act No. 27 of 2003

⁸³ Sri Lanka Press Council Law No. 5 of 1973; Official Secrets Act No. 32 of 1995; Profane Publications Act No. 41 of 1958.

⁸⁴ <https://www.article19.org/resources/sri-lanka-withdraw-online-safety-bill/>

concept of privacy must evolve in response to cultural contexts and societal expectations. What may be considered private in one community could be treated as public in another. This subjectivity becomes especially problematic when legal definitions are absent or underdeveloped.⁸⁵ The scope of privacy violations in the digital age includes the publication of private conversations, revenge pornography, misuse of biometric data, and surveillance through spyware. Although the Data Protection act was passed in 2022, its enactment is still pending, leaving a critical gap in legal protections.⁸⁶

While rights must be upheld in both offline and online environments, someone can argue that it is equally important to ensure that their limitations-especially for public security and privacy-are clearly defined, lawfully justified, and proportionate. But without urgent reform and institutional strengthening, the risk remains that these limitations may be misused, undermining both democratic accountability and the rule of law. Therefore, modern rights-respecting digital governance framework should incorporate explicit protections for privacy, safeguards against arbitrary censorship, and transparent standards for state intervention in digital spaces. Only then can the balance between liberty and security be maintained in a manner consistent with constitutional guarantees and international human rights obligations.⁸⁷

Conclusion

This study has shown that the digital age has fundamentally reshaped the way human rights are understood, exercised, and restricted in Sri Lanka. Rights that were traditionally framed within a physical and state-centered legal order are now increasingly mediated through digital platforms and private technological actors, requiring a broader and more adaptive interpretation of constitutional and international human rights standards.

At the same time, the analysis highlights that digital transformation has not only expanded opportunities for participation and expression, but has also introduced new forms of vulnerability, particularly in relation to privacy, equality, and freedom from state and non-state interference. The growing reliance on digital infrastructure for governance, communication, and economic activity makes the protection of rights in online spaces no longer optional, but essential for democratic life.

Ultimately, the study underscores the need for Sri Lanka to move towards a more coherent and forward-looking digital rights framework—one that safeguards individual freedoms while ensuring that necessary limitations are clearly defined, legally grounded, and proportionately applied. A rights-respecting digital order must therefore balance liberty, security, and accountability in a way that reflects both constitutional values and evolving international human rights standards.

⁸⁵ UN General Assembly. (2013). *The Right to Privacy in the Digital Age*, A/RES/68/167.

⁸⁶ Data Protection Bill (Sri Lanka), gazetted in 2022

⁸⁷ <https://www.ohchr.org/en/privacy-in-the-digital-age>